

PR-24-000861 In the Matter of 2011 FRINK FAMILY TRUST – Petitioner’s Motion to Reopen Case and Vacate Request for Dismissal – DENIED with instructions.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: Petitioner voluntarily dismissed this proceeding without prejudice on July 22, 2025. The dismissal was entered the same day. As Petitioner acknowledges, relief under Code of Civil Procedure section 473(b) is unavailable. Section 473(b) requires that any motion for relief be made within six months after entry of the dismissal. Petitioner's motion was filed more than one year after entry of dismissal. The Court therefore lacks authority to grant relief under that statute. Petitioner alternatively relies on Probate Code sections 800, 1000, and 17206, Code of Civil Procedure section 187, and the Court's inherent authority. The Court is not persuaded that those authorities provide an independent basis for vacating a voluntary dismissal after expiration of the statutory period governing relief from dismissals. Petitioner has cited no authority authorizing such relief under the circumstances presented here. The Court recognizes that the dismissal was entered without prejudice and therefore did not operate as an adjudication on the merits. The Court further acknowledges that Petitioner is entitled to file his petition. The Court has clarified with the clerk's office that Petitioner can and should file his petition as a new case under a new case number and apologizes to Petitioner for any confusion. For the reasons set forth above, the motion is DENIED, but with the instruction that the Court has authorized the petition to be filed under a new case number. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: f5bc34199ca765b7cf222b37641d0185df99083f14bccf3fdef6dfdb00f8a6c7

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